

Issued: November 29, 2017

FEDERAL MARITIME COMMISSION

**ENVIRONMENTAL ASSESSMENT ON DOCKET NO. 17-10 AND FINDING OF
NO SIGNIFICANT IMPACT**

ENVIRONMENTAL ASSESSMENT

Need for Action: The Commission proposes to amend its regulations governing Non-Vessel-Operating Common Carrier (NVOCC) Service Arrangements and NVOCC Negotiated Rate Arrangements. Specifically, the Commission proposes to remove the NSA filing and publication requirements. The Commission also proposes to permit NRAs to be modified at any time and to permit shipper acceptance of NRAs by booking cargo provided that the NVOCC incorporates a prominent written notice to such effect in each NRA or amendment.

Alternatives: The alternatives before the Commission are that the proposed rule may be adopted, modified, or terminated without adoption.

IMPACTS	DEGREE OF ENVIRONMENTAL IMPACT		
	Not Applicable	Insignificant	Significant
A. ENERGY			
1. Terminal Operations			
a. Vessels at dockside (auxiliary plant)		X	
i. New calls at port		X	
ii. Shifting berths		X	
b. Stevedoring and cranes (loading/offloading)		X	
c. Circulation of vehicles including trucks, fork lifts, packets, etc.		X	
d. Maintenance/repair shops, office spaces, and utilities (boilers and diesels)		X	
e. Off dock operations		X	
2. Vessels underway (piloting, berthing, etc.)		X	

IMPACTS	DEGREE OF ENVIRONMENTAL IMPACT		
	Not Applicable	Insignificant	Significant
B. AIR QUALITY			
1. Vessels at dockside		X	
2. Stevedoring and cranes		X	
3. Circulation of vehicles		X	
4. Maintenance shops and utilities		X	
5. Storage tanks (other than diesel oil)		X	
6. Off dock operations		X	

IMPACTS	DEGREE OF ENVIRONMENTAL IMPACT		
	Not Applicable	Insignificant	Significant
C. NOISE POLLUTION			
1. Vessels at dockside (auxiliary machinery)		X	
2. Stevedoring and cranes (loading/off-loading)		X	
3. Circulation of Vehicles		X	
4. Maintenance shops		X	
5. Vessels underway		X	
6. Off dock operations		X	

IMPACTS	DEGREE OF ENVIRONMENTAL IMPACT		
	Not Applicable	Insignificant	Significant
D. HAZARDOUS CARGOES (other than containerized)		X	

IMPACTS	DEGREE OF ENVIRONMENTAL IMPACT		
	Not Applicable	Insignificant	Significant
E. WATER QUALITY			
1. Berth dredging (impacts on turbidity)		X	
2. Vessels underway (piloting and berthing)		X	
3. Landfill		X	
4. Off dock operations		X	

IMPACTS	DEGREE OF ENVIRONMENTAL IMPACT		
	Not Applicable	Insignificant	Significant
F. BIOLOGICAL			
1. Terrestrial habitat (birds, animals, plants)		X	
2. Marine habitat (fish, invertebrates, mammals)		X	

IMPACTS	DEGREE OF ENVIRONMENTAL IMPACT		
	Not Applicable	Insignificant	Significant
G. RECREATION		X	

IMPACTS	DEGREE OF ENVIRONMENTAL IMPACT		
	Not Applicable	Insignificant	Significant
H. CULTURAL AND ARCHEOLOGICAL		X	

IMPACTS	DEGREE OF ENVIRONMENTAL IMPACT		
	Not Applicable	Insignificant	Significant
I. LAND USE		X	

FINDING OF NO SIGNIFICANT IMPACT

In accordance with the National Environmental Policy Act of 1969 (NEPA), the Federal Maritime Commission has assessed the environmental and energy impacts of Docket No. 17-10.

In Docket No. 17-10, the Commission, in response to a petition from the National Customs Brokers and Forwarders Association of America, will decide whether to amend its regulations governing NVOCC Service Arrangements at 46 C.F.R. part 531 to remove the NSA filing and essential terms publication requirements. The Commission will also decide whether to amend its regulations governing NVOCC Negotiated Rate Arrangements at 46 C.F.R. part 532

to: (1) permit NRAs to be modified after the receipt of the initial shipment by the carrier; and (2) permit shippers' acceptance of the NRA by booking a shipment thereunder, subject to the NVOCC incorporating a prominent written notice to such effect in each NRA or amendment.

The foregoing impact assessment for Docket No. 17-10 indicates that this rulemaking will have no significant effects on the quality of the human environment. The Commission therefore concludes that preparation of an environmental impact statement is not required under 42 U.S.C. § 4332(2)(C).

The FONSI will become final within 10 days of publication of the Notice of Proposed Rulemaking, which includes a Notice of Availability of the FONSI, in the Federal Register unless a petition for review is filed under 46 C.F.R. § 504.6(b).

By the Commission.

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